

No. 23-13396

IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT

AMERICAN SECURITIES ASSOCIATION, CITADEL SECURITIES LLC,
Petitioners,

v.

UNITED STATES SECURITIES AND EXCHANGE COMMISSION,
Respondent.

**MOVANT-INTERVENOR CONSOLIDATED AUDIT TRAIL, LLC'S
CORPORATE DISCLOSURE STATEMENT AND CERTIFICATE OF
INTERESTED PERSONS**

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The undersigned counsel represents Consolidated Audit Trail, LLC, which anticipates filing a motion to intervene in this appeal on November 16, 2023. Pursuant to Eleventh Circuit Rule 26.1-1 through 26.1-3 and Federal Rule of Appellate Procedure 26.1, the undersigned counsel hereby certifies that, to the best of its knowledge, the Certificate of Interested Persons set forth in Petitioners' petition for review is complete, subject to the following additions:

- Consolidated Audit Trail, LLC
- BOX Exchange LLC
- Boyle, Gregory (counsel for Consolidated Audit Trail, LLC)
- Cboe BYX Exchange, Inc.
- Cboe BZX Exchange, Inc.
- Cboe C2 Exchange, Inc.
- Cboe EDGA Exchange, Inc.
- Cboe EDGX Exchange, Inc.
- Cboe Exchange, Inc.
- Financial Industry Regulatory Authority, Inc.
- Gershengorn, Ian Heath (counsel for Consolidated Audit Trail, LLC)
- Investors' Exchange LLC
- Jenner & Block LLP
- Long-Term Stock Exchange, Inc.

- MEMX LLC
- Miami International Securities Exchange, LLC
- MIAX Emerald, LLC
- MIAX PEARL, LLC
- Nasdaq BX, Inc.
- Nasdaq GEMX, LLC
- Nasdaq ISE, LLC
- Nasdaq MRX, LLC
- Nasdaq PHLX LLC
- The Nasdaq Stock Market LLC
- New York Stock Exchange LLC
- NYSE American LLC
- NYSE Arca, Inc.
- NYSE Chicago, Inc.
- NYSE National, Inc.
- Unikowsky, Adam (counsel for Consolidated Audit Trail, LLC)

Pursuant to Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rules 26.1-1 through 26.1-3, counsel for Consolidated Audit Trail, LLC, hereby certifies that Consolidated Audit Trail, LLC, has no parent corporation. The following three publicly held companies have an indirect ownership interest in Consolidated

Audit Trail, LLC, of 10% or more: Cboe Global Markets (CBOE); Intercontinental Exchange, Inc. (ICE); and Nasdaq, Inc (NDAQ).

November 14, 2023

Respectfully submitted,

/s/ Ian Heath Gershengorn

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Counsel for Consolidated Audit Trail, LLC

CERTIFICATE OF SERVICE

I hereby certify that on November 14, 2023, I caused the foregoing document to be electronically filed with the Clerk of the Court for the United States Court of Appeals for the Eleventh Circuit by using the CM/ECF system. I certify that all participants in the case are registered CM/ECF users and that service will be accomplished by the CM/ECF system.

/s/ Ian Heath Gershengorn